

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

TALIA BEN-ORA,

Plaintiff,

-against-

**THE CITY OF NEW YORK; LT. PETER
W. WEINER; PO ANTHONY SERRANO,**

Defendants.

Index No.:

SUMMONS

Plaintiff designates New York County
as the place of trial

To the above-named Defendants:

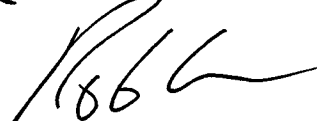
You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
May 13, 2022

Rickner PLLC

By:



Rob Rickner

14 Wall Street Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorneys for Plaintiff

TO:

THE CITY OF NEW YORK
New York City law Department
100 Church Street
New York, New York 10007

LT. PETER W. WEINER
One Police Plaza
New York, New York 10038

PO ANTHONY SERRANO
One Police Plaza
New York, New York 10038

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK****TALIA BEN-ORA,**

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**THE CITY OF NEW YORK; LT. PETER
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VERIFIED COMPLAINT

Plaintiff Talia Ben-Ora (“Plaintiff”), by her attorneys, Rickner PLLC, complaining of the Defendants, alleges, upon information and belief and personal knowledge:

NATURE OF THE CASE

1. This is a civil rights action brought against the City of New York and members of the New York City Police Department (“NYPD”), who violated Plaintiff’s rights under the Constitution of the United States and the Constitution of the State of New York, and committed torts actionable under the common laws and statutes of the State and New York.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of Plaintiffs rights under the Fourth and Fourteenth Amendments to the Constitution of the United States, as well as Plaintiff’s rights under Article 1, Section 12 of the Constitution of the State of New York, and violations of the statutes and the common laws of the State and New York.

3. An award of costs and attorneys’ fees is authorized pursuant to 42 U.S.C. § 1988.

4. Pursuant to New York State General Municipal Law § 50-e, Plaintiff filed a timely

Notice of Claim with the New York City Comptroller and the Comptroller designated the claim as number 202100083556.

5. Plaintiff appeared for a hearing under New York State General Municipal Law § 50-h on October 1, 2021.

6. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

7. Venue is properly laid in the Supreme Court of the State of New York, County of New York, because the Plaintiff's claims arose in the County of New York.

8. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

9. Plaintiff is, and was at all times relevant to this action, a resident of Kings County in the State of New York.

10. Defendant the City of New York ("City") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.

11. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

12. Defendant Lt. Peter Weiner ("Weiner") (Last Known Shield No. 4058) was, at all relevant times described herein, an NYPD officer employed by the City of New York. At all relevant times, he was acting in the course and scope of his duties attendant to that employment,

and he is sued in his individual capacity for acts and omissions committed under color of law.

13. Lt. Weiner is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

14. Defendant Police Officer Anthony Serrano (“Serrano”) (Shield No. 15362; Tax ID 943806) was, at all relevant times described herein, an NYPD officer employed by the City of New York. At all relevant times, he was acting in the course and scope of his duties attendant to that employment, and he is sued in his individual capacity for acts and omissions committed under color of law.

15. PO Serrano is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

16. PO Serrano is further entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

17. Weiner and Serrano are referred to collectively as the “Individual Defendants.”

THE VIOLATION OF PLAINTIFF’S CIVIL RIGHTS

18. On February 12, 2021, Plaintiff was in the vicinity 6th Avenue and 53rd or 54th Streets in Manhattan, New York, recording an ongoing protest pursuant to her responsibilities as an independent video journalist.

19. The event was organized to protest police abuses and brutality, and Plaintiff attended as a member of the press. No curfew was in effect on that date.

20. Plaintiff was wearing her press pass created by the IWW Freelance Journalists Union throughout the protest, and was recording on her cell phone as well as a digital camera, which she wore around her neck.

21. Shortly before 9:00 p.m., Plaintiff started recording the arrest of three civilians from

a safe distance and on the public sidewalk.

22. As the NYPD response to the area escalated, police created a barrier, trapping Plaintiff inside its perimeter and refusing to allow her to move to the other side of the police line, despite the fact that she was uninvolved in the ongoing encounter and was merely filming the incident as part of her duties as a member of the press.

23. Out of fear that the officers may become angry about her location inside the perimeter (which she could not escape), Plaintiff attempted to show her badge to the officers nearest to her while verbally identifying herself as press, both to the officers and the civilians they were arresting. She was told by a female SRG officer that she could stay where she was.

24. At that time, one of the civilian arrestees, who understood Plaintiff to be a journalist, asked Plaintiff if she could pick up or find the civilian's phone, which had fallen to the ground. Plaintiff asked the officers if she could heed this request, to which they responded that she needed to wait a few minutes before doing so. Plaintiff was not instructed to leave the area.

25. Defendant Lt. Weiner quickly became frustrated with the reporter's presence, urged Plaintiff to move up the block and away from the arrest location.

26. As she was complying with this request and backing away, Plaintiff continued filming, identified herself as press once again, and attempted to tell Lt. Weiner that the officer behind him had given her permission to stay and wait until the arrest was complete.

27. Lt. Weiner refused to let Plaintiff speak, interrupted her, and started aggressively pushing toward her before grabbing her arm and ordering her to put her phone down.

28. Plaintiff's press badge (which properly identifies her as a journalist but was not issued by the NYPD) was visible to Weiner for the entire encounter. Despite this, Weiner refused to afford Plaintiff the opportunity to lawfully record the incident or leave the area, and instead

arrested her without probable cause and in violation of her civil rights.

29. Weiner then called over Officer Serrano, who cuffed Plaintiff as Weiner commented that Plaintiff was under arrest for refusing to leave. But Plaintiff had made no such refusal—she merely tried speaking with the officer to identify herself and clear up the conflicting instructions she received while she continued filming.

30. Serrano, Plaintiff's arresting officer, failed to intervene in these unconstitutional acts, and instead joined in Plaintiff's unlawful arrest.

31. He transported her to the 7th Precinct, where the officers seized Plaintiff's belongings, including both cameras, and wrongfully photographed, fingerprinted, and held her in unsanitary conditions until approximately 2:00 in the morning.

32. These wrongful charges were dropped by the prosecutor before an initial appearance.

33. Plaintiff's lawful press badge was permanently confiscated by the NYPD.

THE INJURIES TO PLAINTIFF

34. This action seeks damages on behalf of Plaintiff for the extraordinary emotional pain and suffering, injuries to her person, and loss of liberty that Plaintiff was forced to endure as a consequence of the Individual Defendants' decidedly wrongful actions.

35. Defendants' actions were wanton, reckless, and malicious, as well as in blatant disregard of Plaintiff's civil rights, and as such the Individual Defendants are liable for damages, as is the City of New York under the doctrine of *respondeat superior*.

36. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

**FIRST CLAIM FOR RELIEF:
VIOLATION OF THE FIRST AMENDMENT UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

37. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

38. Observing and recording police activity for public dissemination, particularly for members of the press, is a fundamentally essential part of enforcing the promises of the First Amendment of the United States Constitution.

39. Plaintiff, who was wearing a visible press pass and verbally identified herself as press multiple times, was nonetheless arrested while filming a police encounter.

40. By arresting and detaining Plaintiff in response to her recording of the police, the Individual Defendants acted with reckless and callous indifference to Plaintiff's First Amendment rights of free speech and public dissemination of her footage as a journalist.

41. By virtue of these unconstitutional acts, Plaintiff was deprived of her civil rights guaranteed under the First and Fourteenth Amendments to the United States Constitution.

42. Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of her liberty. The Individual Defendants are therefore liable for damages, as is the City of New York under the doctrine of *respondeat superior*.

**SECOND CLAIM FOR RELIEF:
VIOLATION OF EQUAL PROTECTION UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

43. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

44. The Fourteenth Amendment of the United States Constitution prohibits the discriminatory enforcement of laws, where such selective enforcement is made with the intent to

inhibit or punish the exercise of a constitutional right.

45. Here, the Individual Defendants selectively enforced the law based on the absence of an NYPD-issued press pass, which is neither required nor necessary for a member of the press to properly identify themselves to police at public events, in an effort to interfere with Plaintiff's First Amendment right to record police activity.

46. By virtue of the unconstitutional acts, Plaintiff was deprived of her Equal Protection rights guaranteed under the Fourteenth Amendment to the United States Constitution.

47. Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of her liberty. The Individual Defendants are therefore liable for damages, as is the City of New York under the doctrine of *respondeat superior*.

**THIRD CLAIM FOR RELIEF:
FALSE ARREST UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

48. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

49. The Individual Defendants restrained and arrested Plaintiff without probable cause.

50. Plaintiff, who was following the commands of nearby officers regarding where she could stand to film, was wrongfully pushed and pulled by Lt. Weiner, while explaining that she was press. The Individual Defendants did not allow Plaintiff to leave the area, and instead arrested her without probable cause or any indication that she committed a criminal offense.

51. By virtue of the unconstitutional acts, Plaintiff was deprived of her right to be free from unreasonable searches and seizures guaranteed by the Fourth Amendment to the United States Constitution.

52. Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a

deprivation of her liberty. The Individual Defendants are therefore liable for damages, as is the City of New York under the doctrine of *respondeat superior*.

**FOURTH CLAIM FOR RELIEF:
MONELL LIABILITY AGAINST THE CITY OF NEW YORK**

53. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

54. Defendant City of New York is liable for the conduct of Lt. Weiner pursuant to *Monell v. Department of Soc. Svcs.*, 436 U.S. 658 (1978), because the driving force behind the constitutional violations described herein were the *de facto* and explicit policies and practices of the NYPD and the City.

55. Specifically, the NYPD has a widespread policy, custom, and practice of obstructing or preventing members of the media and press from recording police activity in public spaces in violation of the First, Fourth, and Fourteenth Amendments of the United States Constitution.

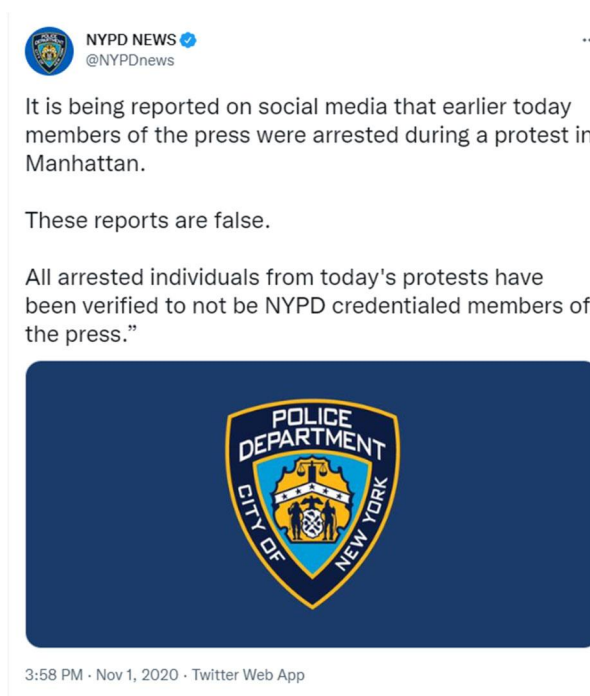
56. This policy is endorsed and promulgated, in part, through the NYPD's use of department-issued press identifications—which are not required by law, but are treated by the NYPD as the only legitimate way for New York City journalists to identify themselves.

57. As a result, members of the NYPD consistently refuse to respect, acknowledge, or otherwise defer to press passes that conform to the law, but were not issued by the NYPD itself, just as the Individual Defendants did here.

58. This process is one of the driving forces behind the discriminatory enforcement experienced by Plaintiff and others like her.

59. The NYPD continues to perpetuate this arbitrary distinction between members of the press who are licensed by the NYPD, and those who are not, despite the fact no local law or ordinance creates such a distinction, nor does the NYPD's own internal patrol guide.

60. The agency has even made public statements attempting to draw this unfounded distinction in defense of their illegal acts:



61. As a result of the City's unconstitutional policies and practices, Plaintiff was treated differently than those similarly situated journalists who obtained an NYPD press pass, who are favored by and treated differently than those journalists who have not obtained these passes, in violation of her First, Fourth, and Fourteenth Amendment rights.

62. The City of New York is therefore liable to Plaintiff for any damages caused, except punitive damages.

**FIFTH CLAIM FOR RELIEF:
ASSAULT AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

63. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

64. The Individual Defendants intentionally, willfully and maliciously assaulted

Plaintiff, in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact, and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, and that such acts caused apprehension of such contact in the Plaintiff.

65. Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of her liberty. The Individual Defendants are therefore liable for damages, as is the City of New York under the doctrine of *respondeat superior*.

**SIXTH CLAIM FOR RELIEF:
BATTERY AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

66. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

67. The Individual Defendants intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner, struck Plaintiff and handcuffed her without her consent and with the intent of causing harmful and/or offensive bodily contact, and caused such contact on Plaintiff.

68. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of her liberty. The Individual Defendants are therefore liable for damages, as is the City of New York under the doctrine of *respondeat superior*.

**SEVENTH CLAIM FOR RELIEF:
FALSE ARREST AND IMPRISONMENT
AGAINST THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**

69. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

70. Plaintiff was arrested, handcuffed, and detained in the absence of probable cause.

71. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

72. Plaintiff was conscious of the confinement and did not consent to such confinement.

73. Plaintiff's arrest is *void ab initio* because Plaintiff was taken to a precinct or otherwise taken into custody, rather than being given a summons or other process without such detainment, in violation of New York Criminal Procedure Law § 150.20.

74. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of her liberty. The Individual Defendants are therefore liable for damages, as is the City of New York under the doctrine of *respondeat superior*.

**EIGHTH CLAIM FOR RELIEF:
NEGLIGENT SUPERVISION, TRAINING, RETENTION, AND DISCIPLINE
AGAINST THE CITY OF NEW YORK**

75. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

76. The City of New York negligently supervised, trained, retained, and disciplined its officers, including the Individual Defendants, regarding the rights of the public and the press to record police activity without fear of arrest or prosecution.

77. By virtue of these failures, the City was the direct and proximate cause of the violations against Plaintiff alleged herein.

78. As a result, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of her liberty. The City of New York is therefore liable for damages under the doctrine of *respondeat superior*.

**NINTH CLAIM FOR RELIEF:
VIOLATION OF N.Y. CIVIL RIGHTS LAW § 79-P
AGAINST THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**

79. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

80. The New York Civil Law protects the right of the public to record law enforcement activity without threat or fear of arrest or subsequent prosecution.

81. Section 79-P(3) created a private right of action for persons whose rights have been violated pursuant to this law.

82. The Individual Defendants violated Plaintiff's rights under this law by:

- a. intentionally preventing or attempting to prevent Plaintiff from recording law enforcement activity;
- b. threatening to arrest Plaintiff;
- c. commanding Plaintiff to stop recording;
- d. seizing and otherwise tampering with her recording equipment; and
- e. unlawfully stopping, seizing, and arresting Plaintiff based on this recording.

83. As a result of the above unlawful conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of her liberty. The Individual Defendants are therefore liable for damages, as is the City of New York under the doctrine of *respondeat superior*.

**TENTH CLAIM FOR RELIEF:
VIOLATION OF N.Y.C. ADMIN. CODE § 14-189(B)
AGAINST THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**

84. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

85. The New York City Administrative Code protects the right of the public to record law enforcement activity without threat or fear of arrest or subsequent prosecution.

86. Section 14-189(c) of the Administrative Code creates a private right of action for persons whose rights have been violated pursuant to this law.

87. The Individual Defendants violated Plaintiff's rights under this law by:

- a. intentionally preventing or attempting to prevent Plaintiff from recording law enforcement activity;
- b. threatening to arrest Plaintiff;
- c. seizing and otherwise tampering with her recording equipment;
- d. unlawfully stopping, seizing, and arresting Plaintiff based on this recording.

88. As a result of this unlawful conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of her liberty, and The Individual Defendants are therefore liable for damages, as is the City of New York under the doctrine of *respondeat superior*.

**ELEVENTH CLAIM FOR RELIEF:
VIOLATION OF N.Y.C. ADMIN. CODE §§ 8-801–807
AGAINST THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**

89. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

90. The New York City Administrative Code protects the right of an individual to be free from unreasonable searches and seizures.

91. Section 8-803 of the Administrative Code creates a private right of action for persons whose rights have been violated pursuant to this law.

92. Qualified immunity is not a defense to this claim.

93. As a result of the Individual Defendants' unlawful conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of her liberty.

94. The City of New York is therefore liable for this conduct pursuant to New York City Administrative Code § 8-803(b).

**TWELFTH CLAIM FOR RELIEF:
VIOLATION OF ARTICLE I, § 12 OF THE NEW YORK STATE CONSTITUTION
AGAINST THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**

95. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

96. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom of speech and assembly;
- ii. freedom from unreasonable search and seizure of her person and property;
- iii. freedom from arrest without probable cause;
- iv. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- v. freedom from deprivation of liberty without due process of law.

97. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of her liberty. The Individual Defendants are therefore liable for damages, as is the City of New York under the doctrine of *respondeat superior*.

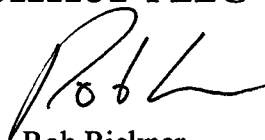
WHEREFORE, Plaintiff demands the following relief jointly and severally against the Individual Defendants, as well as the City of New York:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
May 13, 2022

Rickner PLLC

By:



Rob Rickner

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorneys for Plaintiff

ATTORNEY'S VERIFICATION

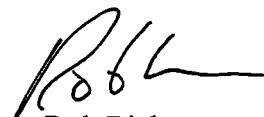
I, Rob Rickner, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

- 1) I am the attorney of record for the Plaintiff.
- 2) I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
- 3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: New York, New York
May 13, 2022

Rickner PLLC

By:


Rob Rickner

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorneys for Plaintiff